

SERVICE MONTHER, LLC vs. JAMES TAYLOR
Case No. CL24-07741

Defendant's Motion to Set Aside Default and Vacate Default Judgment

TENTATIVE RULING

The Parties are to appear to discuss whether the matter has settled.

VICTORYA ROSE JAMES and ELIJAH RICARTE JAMES vs. HYUNDAI MOTOR AMERICA
Case No. CU24-06447

Plaintiffs' Motion for Attorneys' Fees

TENTATIVE RULING

On May 5, 2026, the above matter was on calendar and the Parties appeared. The Parties made oral arguments on the issue of reasonable hourly billing rates. The Court allowed additional declarations and continued the hearing to June 26, 2026. The Court has reviewed the supplemental declarations.

At the hearing, Plaintiff's Counsel also referenced the Court's tentative ruling in *Powell v General Motors, LLC*, FCS 059228, where the Court found billing rates ranging from \$195 to \$875 with most billing in the \$400-\$600 hour range to be reasonable. The next sentence, however, states: "Further, Defendant does not make a particular challenge to counsel's rates." In the present case, Defendant has challenged Plaintiff Counsel's billing rates. The Court has considered all arguments and submissions and modifies its previous tentative ruling.

Plaintiffs VICTORYA ROSE JAMES and ELIJAH RICARTE JAMES move for an award of attorneys' fees and costs following settlement of this action brought under the Song-Beverly Consumer Warranty Act (the "Act" or "lemon law") against Defendant HYUNDAI MOTOR AMERICA.

A prevailing buyer under the lemon law shall be allowed to recover attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the prosecution of his action. (Civ. Code, § 1794, subd. (d).) When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*)). These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the